

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF NEW YORK

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JUAN AYARDE,

Plaintiff,

-against-

DETECTIVE RICHARD ALLISON, Shield No. 7294,  
DETECTIVE JASON MILLER, Shield No. 2120,  
DETECTIVE RUDY LAHENS, Shield No. 2065,  
DETECTIVE SAED RABAH, Shield No. 07604,  
DETECTIVE HOPING LEE, Shield No. 02882, and  
POLICE OFFICERS JOHN DOE 1-10,

Defendants.

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## SUMMONS

Index No.:

The Basis of Venue is:  
Location of IncidentPlaintiff designates NEW YORK  
County as the place of trial.

## To the above named Defendants:

**You are hereby summoned** to answer the verified complaint in this action, and to serve a copy of your answer, or, if the verified complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York  
June 24, 2021

Yours, etc.

CAITLIN ROBIN, ESQ.  
CAITLIN ROBIN & ASSOCIATES PLLC  
Attorneys for Plaintiff  
30 Broad Street, Suite 702  
New York, New York 10004  
(646)-524-6026

TO: DETECTIVE RICHARD ALLISON, Shield No. 7294

DETECTIVE JASON MILLER, Shield No. 2120, NYPD Manhattan South Narcotics  
Borough, 220 East 21<sup>st</sup> Street, 3<sup>rd</sup> Floor, NY, NY 10010

DETECTIVE RUDY LAHENS, Shield No. 2065,

DETECTIVE SAED RABAH, Shield No. 07604,

DETECTIVE HOPING LEE, Shield No. 02882

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INDEX NO.:

VERIFIED COMPLAINT

JURY TRIAL DEMANDED

Plaintiff, JUAN AYARDE, by his attorneys, Caitlin Robin & Associates, PLLC, as and for his Verified Complaint herein, alleges upon information and belief as follows:

**PRELIMINARY STATEMENT**

1. This is a civil rights action to recover money damages arising out of Defendants' violation of Plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Section 1983, and of rights secured by the Fourth and Fourteenth Amendments to the United States Constitution. On January 22, 2013, at approximately 4:00 p.m., Plaintiff JUAN AYARDE was subjected to an unlawful stop, frisk, search, detention, and false imprisonment, while lawfully present in the vicinity of 229 East 25<sup>th</sup> Street in New York County, New York. Thereafter, the Defendant police officers denied Plaintiff the right to a fair trial by forwarding false information to the New York County District Attorney's Office. All criminal charges were dismissed and sealed against Plaintiff on or about February 14, 2019. Plaintiff was deprived of his constitutional rights when the individual Defendants unlawfully stopped, questioned, frisked, searched, unlawfully arrested, and denied the Plaintiff the right to a fair trial in violation of the Fourth and Fourteenth Amendments to the United States Constitution.

**PARTIES**

2. Plaintiff JUAN AYARDE is a resident of the State of New York.

3. DETECTIVE RICHARD ALLISON, Shield No. 7294, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

4. On the date of the subject incident DETECTIVE RICHARD ALLISON, Shield No. 7294, was assigned to Manhattan North Narcotics.

5. DETECTIVE RICHARD ALLISON, Shield No. 7294, is being sued in his individual and official capacities.

6. DETECTIVE JASON MILLER, Shield No. 2120, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

7. On the date of the subject incident DETECTIVE JASON MILLER, Shield No. 2120, was assigned to Manhattan North Narcotics.

8. DETECTIVE JASON MILLER, Shield No. 2120, is being sued in his individual and official capacities.

9. DETECTIVE RUDY LAHENS, Shield No. 2065, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

10. On the date of the subject incident DETECTIVE RUDY LAHENS, Shield No. 2065, was assigned to Manhattan North Narcotics.

11. DETECTIVE RUDY LAHENS, Shield No. 2065, is being sued in his individual and official capacities.

12. DETECTIVE SAED RABAH, Shield No. 07604, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

13. On the date of the subject incident DETECTIVE SAED RABAH, Shield No. 07604, was assigned to the Manhattan North Narcotics.

14. DETECTIVE SAED RABAH, Shield No. 07604, is being sued in his individual and official capacities.

15. DETECTIVE HOPING LEE, Shield No. 02882, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

16. On the date of the subject incident DETECTIVE HOPING LEE, Shield No. 02882, was assigned to the Manhattan North Narcotics.

17. DETECTIVE HOPING LEE, Shield No. 02882, is being sued in his individual and official capacities.

18. POLICE OFFICER JOHN DOE 1-10, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

19. At all times relevant herein, the individual Defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

20. At all times relevant hereto, Defendant CITY OF NEW YORK, operated, maintained, managed, supervised and controlled the New York City Police Department ("NYPD") as part of and in conjunction with its municipal function.

21. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The Defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

22. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

### **STATEMENT OF FACTS**

23. On January 22, 2013 at approximately 4:00 p.m., Plaintiff was lawfully walking down the street in the vicinity of 229 East 25<sup>th</sup> Street, in New York, New York, when the Defendant police officers unlawfully stopped him without reasonable suspicion or probable cause.

24. The Defendant police officers for absolutely no reason other than the color of Plaintiff's skin, stopped him, threw him up against a wall, and illegally searched him.

25. At no time prior to being stopped by the officers did Plaintiff commit a crime or behave in a manner that gave the police officers a reasonable and objective basis to believe he had committed or was committing a crime.

26. The Defendant Police Officers unlawfully handcuffed Plaintiff and placed him under arrest.

27. The Defendant police officers refused to tell the Plaintiff why he was being detained and arrested.

28. At no time relevant herein did Plaintiff commit a crime or violate the law in any way, nor did the police officers have an objective reason to accuse Plaintiff of committing a crime or violating the law in any way.

29. The Defendant Officers searched Plaintiff and found no contraband or anything illegal on him.

30. At no point in time did Plaintiff resist arrest in any way.

31. The Defendant police officers then unlawfully placed Plaintiff under arrest and transported him to the NYPD 13<sup>th</sup> Precinct.

32. At the NYPD 13<sup>th</sup> precinct, Plaintiff was fingerprinted, photographed, and unlawfully detained in a holding cell.

33. Plaintiff was then transported from the NYPD 13<sup>th</sup> Precinct to New York County Central Booking.

34. The Defendant Officers falsely stated to the New York District Attorney's Office that Plaintiff had committed the crime of criminal sale of a controlled substance despite knowing that they lacked a legal and factual basis to allege that Plaintiff committed any crime.

35. On January 23, 2013, after approximately 24 hours unlawfully in police custody, Plaintiff was arraigned in New York County Criminal Court and charged with crimes that the defendant officers had no basis to allege that he committed.

36. At arraignment, bail was set on Plaintiff based on the Officers false allegations.

37. After approximately four days unlawfully incarcerated, Plaintiff was released on his own recognizance when the People failed to make their 180/80 Grand Jury presentation date.

38. Plaintiff then made Court appearances for approximately twenty-one months, fighting the case, proclaiming his innocence.

39. On or about October 21, 2014, based on the Defendant Officers false allegations, and lies in testimony and police paperwork, Plaintiff was convicted at a jury trial of Criminal sale of a Controlled Substance in the Third Degree, and sentenced to three years of incarceration.

40. Plaintiff was released from jail on or about June 22, 2016, after serving his three year jail sentence.

41. On or about May 24, 2018, the Supreme Court, Appellate Division, First Department, set aside the trial court's verdict, based on the Defendant Officers unlawful actions under the 4<sup>th</sup> Amendment.

42. The Appellate Court decision can be found at 161 A.D. 3d 630 (N.Y. App. Div. 2018).

43. On March 7, 2019, the New York County District Attorney's office to move to dismiss the indictment, and all charges were dismissed and sealed against Plaintiff.

44. While unlawfully incarcerated for three years, Plaintiff was subject to multiple assaults and battery by Correction Officers and other inmates.

45. While unlawfully incarcerated for three years, Plaintiff's relationship with his family was completely destroyed.

46. Some of the police officer Defendants observed the violation of Plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent the Plaintiff being subjected to an unjustifiable stop, question, frisk, search, seizure, false arrest, and denial of fair trial.

47. The unlawful stop, question, frisk, search, false arrest, false imprisonment, and unlawful seizure by the Defendant police officer caused Plaintiff to sustain psychological and emotional trauma.

### **FIRST CAUSE OF ACTION**

#### **Violation of Plaintiff's Fourth and Fourteenth Amendment Rights**

48. The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 47 with the same force and effect as if more fully set forth at length herein.

49. The individually named police officer Defendants while acting in concert and within the scope of their authority, caused Plaintiff to be unlawfully stopped, questioned, frisked, seized, unlawfully searched, falsely arrested, falsely imprisoned, subjected to denial of his due process rights in violation of plaintiff's right to be free of an unreasonable seizure and denial of due process under the Fourth and Fifth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

### **SECOND CAUSE OF ACTION**

#### **False Arrest and False Imprisonment**

50. The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "49" with the same force and effect as if more fully set forth at length herein.

51. The acts and conduct of the Defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine Plaintiff and, in fact, confined Plaintiff, and Plaintiff was conscious of the confinement. In addition, Plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

52. As a direct and proximate result of such acts, Defendants deprived Plaintiff of his rights under the laws of the State of New York and the United States Constitution.

53. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

54. The City, as the employer of the officer Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

55. As a result of the aforementioned conduct of Defendants, Plaintiff sustained injuries including, but not limited to: physical, economic, emotional and psychological injuries.

### **THIRD CAUSE OF ACTION**

#### **Unlawful Stop, Question, and Frisk**

56. The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 55 with the same force and effect as if more fully set forth at length herein.

57. The illegal approach, pursuit, stop, questioning and frisk employed by Defendants herein terminated Plaintiff's freedom of movement through means intentionally applied.

58. The conduct of Defendants in stopping, frisking, and searching Plaintiff were performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

59. As a direct and proximate result of such acts, Defendants deprived Plaintiff of his rights under the laws of the United States Constitution

60. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

61. The City, as the employer of the officer Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.



62. As a result of the aforementioned conduct of Defendants, Plaintiff sustained injuries including, but not limited to physical, economic, emotional, and psychological injuries.

### **FOURTH CAUSE OF ACTION**

#### **Unlawful Search**

63. The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 62 with the same force and effect as if more fully set forth at length herein.

64. The illegal approach, pursuit, stop and search of Plaintiff employed by Defendants herein terminated Plaintiff's freedom of movement through means intentionally applied.

65. Defendants lacked probable cause to search Plaintiff.

66. As a direct and proximate result of such acts, Defendants deprived Plaintiff of his rights under the laws of the State of New York and the United States Constitution.

67. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

68. The City, as the employer of the officer Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

69. As a result of the aforementioned conduct of Defendants, Plaintiff sustained injuries including, but not limited to: physical, emotional, and psychological injuries.

### **FIFTH CAUSE OF ACTION**

#### **Violation of Plaintiff's Fourth And Fourteenth Amendment Rights**

#### **Denial of Right to Fair Trial/Due Process**

70. The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 69 with the same force and effect as if more fully set forth at length herein

71. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Manhattan District Attorney's Office.

72. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the Manhattan District Attorney's Office.

73. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the Manhattan District Attorney's Office.

74. In withholding/creating false evidence against Plaintiff, and in providing/withholding information with respect thereto, Defendants violated Plaintiff's constitutional right to due process and fair trial under the New York State Constitution and under the Due Process Clause of the Fifth Amendment to the Constitution of the United States and to be free to deprivation of liberty under the Fourteenth Amendment to the United States Constitution.

75. As a result of the foregoing, Plaintiff sustained, inter alia, loss of the right to due process and a fair trial, loss of liberty, emotional distress, embarrassment and humiliation, lost earnings and deprivation of his constitutional rights.

76. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

77. The City, as the employer of the officer Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

78. As a result of the aforementioned conduct of Defendants, Plaintiff sustained injuries including, but not limited to: physical, emotional and psychological injuries.

## **SIXTH CAUSE OF ACTION**

### **Negligent Infliction of Emotional Distress**

79. The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 78 with the same force and effect as if more fully set forth at length herein.

80. By the actions described herein, Defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to Plaintiff. The acts and conduct of the Defendants were the direct and proximate cause of injury and damage to Plaintiff and violated Plaintiff's statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

81. The acts and conduct of the Defendants were the direct and proximate cause of injury and damage to Plaintiff and violated Plaintiff's statutory and common law rights as guaranteed plaintiff by the laws and Constitution of the State of New York.

82. As a direct and proximate result of such acts, Defendants deprived Plaintiff of his rights under the laws of the State of New York.

83. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

84. The City, as the employer of the officer Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

85. As a result of the aforementioned conduct of Defendants, Plaintiff sustained injuries including, but not limited to: physical, emotional, and psychological injuries.

### **EIGHTH CAUSE OF ACTION**

#### **Negligent Hiring, Retention, Training and Supervision**

86. The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 85 with the same force and effect as if more fully set forth at length herein.

87. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise Defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.

88. As a result of the aforementioned conduct of Defendants, Plaintiff sustained injuries including, but not limited to: emotional and psychological injuries.

### **NINTH CAUSE OF ACTION**

#### **Failure to Intervene**

89. The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 88 with the same force and effect as if more fully set forth at length herein.

90. The Defendants that did not physically touch Plaintiff, but were present when other officers violated Plaintiff's Constitutional Rights had an affirmative duty to intervene on behalf of Plaintiff, whose constitutional rights were being violated in their presence by other officers.

91. Defendants failed to intervene to prevent the unlawful conduct described herein.

92. As a result of the foregoing, Plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.

93. As a direct and proximate result of such acts, Defendants deprived Plaintiff of his rights under the laws of the State of New York.

94. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

95. The City, as the employer of the officer Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

96. As a result of the aforementioned conduct of Defendants, Plaintiff sustained injuries including, but not limited to: emotional and psychological injuries.

### **TENTH CAUSE OF ACTION**

#### **Malicious Prosecution**

97. The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 96 with the same force and effect as if more fully set forth at length herein.

98. The acts and conduct of the Defendants constitute malicious prosecution under the United States Constitution.

99. Defendants commenced and continued a criminal proceeding against Plaintiff.

100. There was actual malice and an absence of probable cause for the criminal proceeding against Plaintiff and for each of the charges for which they were prosecuted.

101. The prosecution and criminal proceedings terminated in Plaintiff's favor on the aforementioned dates.

102. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate Plaintiff's Fourth Amendment rights.

103. As a direct and proximate result of such acts, Defendants deprived Plaintiff of his rights under the laws of the United States Constitution.

104. The City, as the employer of the officer Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

105. As a result of the aforementioned conduct of Defendants, Plaintiff sustained injuries including, but not limited to: physical, emotional, pecuniary, and psychological injuries.

**JURY DEMAND**

106. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

**PRAYER FOR RELIEF**

**WHEREFORE**, Plaintiff JUAN AYARDE demands judgment against the Defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the Plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York  
June 24, 2021

By: 

CAITLIN ROBIN & ASSOCIATES PLLC.  
CAITLIN ROBIN, ESQ  
Attorneys for Plaintiff  
30 Broad Street, Suite 702  
New York, New York 10004  
(646)-524-6026

TO: DETECTIVE RICHARD ALLISON, Shield No. 7294,  
DETECTIVE JASON MILLER, Shield No. 2120, NYPD Manhattan South Narcotics  
Borough, 220 East 21<sup>st</sup> Street, 3<sup>rd</sup> Floor, NY, NY 10010  
DETECTIVE RUDY LAHENS, Shield No. 2065,  
DETECTIVE SAED RABAH, Shield No. 07604,  
DETECTIVE HOPING LEE, Shield No. 02882

**ATTORNEY'S VERIFICATION**

**CAITLIN ROBIN**, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a member of the law firm of **CAITLIN ROBIN & ASSOCIATES PLLC**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York  
June 24, 2021



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CAITLIN ROBIN, ESQ.